



Civic Meeting Report

Delaware County Metropolitan Plan Commission Meeting - November 6th, 2025

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=g2wCazM1ZmY
Publication Date	2025-11-07T11:56:18Z
Target Category	delaware_county

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Delaware Muny Metropolitan Plan Commission <U+2014> Regular Meeting Summary

Meeting Date: November 6, 2025 (Based on transcript references to October 2025 minutes and November 3/17, 2025 dates)

1. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** [00:00:48](#) Presiding Officer Mr. Smith called the regular meeting of the Delaware Muny Metropolitan Plan Commission to order.
- **Attendance:**
 - **Present (Quorum established with 8 voting members):** Mr. Brand, Mr. Carol, Miss Hensley, Mr. Lache, Mr. Landis, Miss Cypes, Mr. Smith. (Note: Transcript roll call also notes Mr. Curley, Mr. Dishman, Mr. Ivy, and Mr. Leachch).
 - **Presiding Officer:** Mr. Smith.

2. Preliminary & Procedural Business

- **Ceremonial Openings:** 00:00:52 The meeting opened with the Pledge of Allegiance.
 - **Clarification on September Minutes:** 00:02:10 Staff clarified that the September minutes, previously announced as approved at the October meeting with 4 yeses and 2 abstentions, did not meet the required 5-vote threshold. Per Mr. Murphy's direction, the September minutes will simply be posted without formal approval.
 - **Approval of October Minutes:** 00:02:46 Motion and second were made to approve the October 2025 meeting minutes. Following a roll call vote (6 yeses, 2 abstentions by Mr. Carol and Mr. Landis), the October 2025 minutes were **Approved**.
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3. Substantive Business & Board Action

Item 1 00:05:25 MPC17-25Z: Zone Change Appeal (Estate of Donna M. Waist)

- **Item Identifier & Title:** 00:05:25 MPC17-25Z <U+2014> Consideration of an appeal filed by the estate of Donna M. Waist (90001 South County Road 700 West, Daleville, IN).
- **Sponsor / Presenter:** Kathy Van Ice, Ashton Land Surveyors.
- **Deliberation Summary:** The applicant requested a zone change from a split zone (F farming zone and BV variety business zone) to a uniform BV (variety business zone). The parcel has been used for commercial purposes since the 1970s (car auction, gravel sales, tractor parts). Notices were sent to 17 neighboring properties with no responses received. Staff noted support for clearing up the split-zoning issue.
- **Item-Specific Public Input:** None.
- **Action & Vote Disposition:** Motion made and seconded for a favorable recommendation. Approved by roll call vote (8 yeses, 0 noes). Forwarded to the County Commissioners for their November 17th meeting at 9:00 a.m.

Item 2 00:11:20 MPC18-25Z: Zone Change Appeal (Anne Fruit, Renee Warner Vanfleet, Cynthia Parker)

- **Item Identifier & Title:** 00:11:20 MPC18-25Z <U+2014> Consideration of an appeal filed by Anne Fruit, Renee Warner Vanfleet, and Cynthia Parker, requesting a zone change from R2 (residence zone) to BV (variety business zone) for property located at 4917 North Wheeling Avenue (northwest corner of Wheeling and Rigan).
- **Sponsor / Presenter:** Nick Tokar (Tokar Law) representing the applicant; Jane Stevenson (Developer).
- **Deliberation Summary:** The applicant and developer presented plans for a new venture combining a convenience store/market ("Market 101" style) featuring fresh food, coffee, and potentially a limited selection of specialty alcohol (such as wine/beer paired with charcuterie boards). The board discussed compatibility with surrounding commercial and

residential uses (including a nearby daycare center). Staff noted receipt of one email of support (Christy Keley) and one email with concerns (Kelly Macauen Williams), along with developer renderings.

- **Item-Specific Public Input:** None during the formal public input window, though board members reviewed written correspondence submitted prior to the meeting.
- **Action & Vote Disposition:** Motion made and seconded for a favorable recommendation. Approved by roll call vote (8 yeses, 0 noes). Forwarded to the County Commissioners for their November 17th meeting at 9:00 a.m.

4. Legislative Action & Administrative Reports

- **Legislative Updates:**
 - *MPC14-25Z* (Benjamin & Belinda Hughes, 1600 N. Wheeling Ave, R4 to BC community business zone) was adopted and approved by City Council on October 8th.
 - *MPC15-25Z* (CRU Properties LLC, 718 N. Walnut St, R5 to CB central business zone) was adopted and approved by City Council on October 8th.
 - *MPC04-25A* (Delaware County comprehensive zoning ordinance amendment regarding solar facilities and commercial battery energy storage systems) was approved and adopted by the County Commissioners on October 7th.
 - **Director<U+2019>s Report:**
 - **Permitting & Inspections:** Through October, the office processed 712 total permits (collecting \$133,778.59 in fees) and completed 1,364 inspections, including 157 complaints investigated.
 - **MPO & Transportation:** The public transit human services transportation coordination plan (MITS federal funding requirement) was updated. Updates were also provided on the Kitselman Trail Phase 3 project, the SS4A grant safety data collection, and staff attendance at the annual APA conference.
 - **County Ordinances:** The new Delaware County pond ordinance was approved and enacted by the Commissioners on November 3rd.
 - **2026 Calendar Approval:** 00:32:11 Motion and second were made to approve the proposed 2026 meeting schedule (noting January 8th and July 9th meetings fall on the second Thursday due to holidays). **Approved by Voice Vote.**
 - **Community Announcements:** Mentioned the Cardinal Greenway Turkey Trot (Nov 27), ECIRPD clothing drive for veterans at the Innovation Connector, and Second Harvest Food Bank donation boxes in the county building lobby.
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5. Open Public Comment / Citizen Forum

- There was no separate open public comment period or citizen forum held near the conclusion of the meeting.
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6. Administrative Updates & Adjournment

- **Board Announcements:**
 - **00:35:11** Mr. Brand raised a citizen inquiry regarding electric fences and general neighborhood fence standards (such as wood pallet/skid fences and proper post orientation). Staff agreed to compile research packets regarding potential fence ordinance additions/revisions for future board discussion.
 - The next regular meeting is scheduled for **December 4, 2025**.
 - **Adjournment: 00:43:06** Meeting adjourned following a motion to adjourn. (*Exact time not explicitly stated*).
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